

**BEFORE THE ARBITRAL TRIBUNAL COMPRISING OF**  
**THE SOLE ARBITRATOR SENIOR ADVOCATE N.N.P. SARDESAI**  
**AT PANAJI, GOA**

**In the matter of:**

**VIKRAM SHAH** ... Claimant

**V/s.**

**RIVA TRINDADE & 3 ORS.** ... Respondents

**REPLY ON BEHALF OF THE CLAIMANT TO THE**  
**APPLICATION DATED 12.06.2026 SEEKING LEAVE TO FILE**  
**ADDITIONAL REPLY FILED BY RESPONDENT NOS. 1, 2 AND**  
**3**

---

**MAY IT PLEASE THIS HON'BLE TRIBUNAL:**

*The Claimant above named most respectfully states and submits  
as under:-*

1. The Claimant has perused the application dated 12.06.2026 filed by Respondent Nos. 1, 2 and 3 seeking leave to file an additional reply to the Claimant's application under Section 17 of the Arbitration and Conciliation Act, 1996 (hereinafter referred to as "the Act") for interim measures. The present reply is being filed to oppose the said application as being



wholly not maintainable in the eyes of law, highly belated, and preferred at this delayed stage with the clear intention to delay the hearing on the application under Section 17 and to further protract and delay the arbitration proceedings.

2. At the very outset, it is submitted that the Respondents have already filed their comprehensive Statement of Defence in the present arbitral proceedings and have also filed a detailed reply to the Claimant's application seeking interim measures under Section 17 of the Act. The said detailed reply was exhaustive and dealt with all the issues, contentions and grounds arising in the interim application. The Respondents had full and ample opportunity to place all relevant facts, documents and material on record at that stage. The present attempt to file yet another "additional reply" is nothing but an abuse of the process of law aimed at protracting the proceedings and frustrating the Claimant's legitimate right to have his urgent interim application decided expeditiously.

3. The grounds urged in support of the present application, namely, alleged intentional suppression of documents by the Claimant and recent discovery of banking records, statement of accounts, deposition/Affidavit in Evidence filed before the Court of Civil Judge Senior Division at Panaji and other



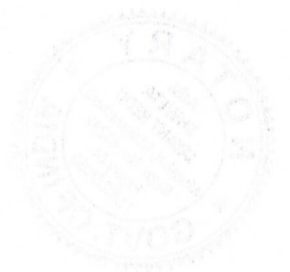
material, do not inspire any confidence and appear to be a clear afterthought contrived to justify the inordinate delay. No particulars whatsoever have been furnished as to (a) when and how these documents were allegedly suppressed by the Claimant; (b) the exact date and manner in which they came to the knowledge and possession of the Respondents; (c) what steps, if any, were taken by the Respondents with due diligence to obtain or produce the same prior to the filing of their detailed reply to the interim application; and (d) why the same could not have been produced along with the said detailed reply. In the absence of any such disclosure or explanation, the present application deserves to be rejected outright as being bereft of merit and bona fides.

4. It is highly significant that the Respondents have already taken out a separate application for production of the very same documents on record before this Hon'ble Tribunal. The present application seeking leave to file additional reply is thus wholly unnecessary, redundant and appears to be a calculated attempt to create parallel or alternative proceedings, or to obtain an undue advantage by placing new material on record without awaiting the outcome of the production application or without affording the Claimant



proper opportunity to respond in the regular course. This conduct itself demonstrates a clear lack of bona fides and reinforces the inference that the application has been preferred with the oblique motive of delaying the hearing on the Section 17 application.

5. A careful perusal of paragraph 6 of the application under reply reveals the real and ulterior purpose behind the present application. The proposed additional reply is stated to be intended "to elaborate, clarify and particularize the existing defences concerning the legal effect of the Articles of Association, the nature and extent of the rights asserted by the Claimant, the status and rights of Respondent No. 2 as a moiety holder, the effect of the Joint Venture Agreement dated 25.04.2014, and the maintainability of the claims raised in the present proceedings." These are all matters of substantive defence on the merits of the dispute which have already been pleaded in the Statement of Defence and which are required to be adjudicated at the final stage of the arbitration after a full-fledged trial, leading of evidence and detailed arguments. These issues have no place in the summary and interlocutory proceedings for interim measures under Section 17 of the Act. Permitting such elaboration and re-argument on merits at this



stage would amount to allowing the Respondents to convert the limited proceedings for interim protection into a mini-trial on the merits of the entire dispute, which is wholly impermissible under law and would inevitably cause gross and unconscionable delay in the disposal of the urgent interim application.

6. It is well settled that an application under Section 17 of the Act for interim measures is required to be decided on a prima facie view of the matter, having regard to the well-established principles of prima facie case, balance of convenience and irreparable injury or loss. The scope of such proceedings is limited and does not permit or contemplate a detailed examination of the merits of the dispute or introduction of voluminous additional pleadings and documents on issues that properly belong to the final hearing and award. The blatant attempt of the Respondents to smuggle in merit-based contentions, elaborate defences and new material through the backdoor of an "additional reply" to the interim application is liable to be firmly thwarted by this Hon'ble Tribunal in the interest of justice and to uphold the legislative scheme of the Act.



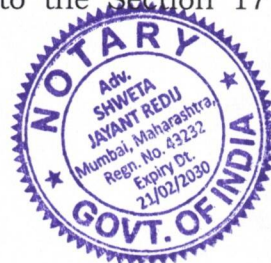
7. The timing of the present application is also extremely telling and speaks volumes about the intention of the Respondents. The Arbitral Tribunal was constituted pursuant to the order dated 07.08.2024 passed in Application for Appointment of Arbitrator No. 13/2024. The Claimant filed the Statement of Claim, followed by the application for interim measures. The Respondents filed their detailed reply to the interim application. Despite having had more than sufficient time, opportunity and knowledge of all proceedings, the Respondents have chosen to file the present application only on 12.06.2026 – nearly two years after the constitution of the Tribunal – at a stage when the Section 17 application is presumably ripe for hearing, listed for final arguments or on the verge of being disposed of. The obvious and only intention is to derail, or at the very least, substantially delay the hearing and adjudication of the urgent interim application by seeking time to file the additional reply, then time for the Claimant to respond, and further time for arguments, thereby frustrating the very object and purpose of Section 17 relief and causing serious prejudice to the Claimant.

8. Arbitration proceedings under the Act are intended to be a speedy, cost-effective and efficient mode of dispute resolution



as an alternative to the protracted litigation in courts. The Preamble to the Act expressly recognizes the object of fair, expeditious and cost-effective resolution of disputes. Section 18 of the Act mandates that the parties shall be treated with equality and each party shall be given a full opportunity to present its case. However, this opportunity cannot be stretched to permit endless rounds of additional pleadings, dilatory tactics and abuse of process that frustrate the overarching legislative intent of expeditious disposal. Arbitral Tribunals are conferred with wide powers under Section 19 of the Act to regulate their own procedure and conduct the proceedings in such manner as they consider appropriate, subject only to the principles of natural justice, equality and opportunity. These powers must be exercised reasonably, fairly and in furtherance of the object of speedy justice, and not to enable one party to hold the proceedings to ransom through repeated interlocutory applications and requests for additional pleadings at belated stages.

9. No prejudice of any kind, much less irreparable prejudice, would be caused to the Respondents if the present application is rejected. Their existing pleadings in the Statement of Defence, the detailed reply already filed to the Section 17



application, and the documents already on record are more than adequate and sufficient for the purpose of opposing the interim measures sought by the Claimant. If any document is genuinely relevant, material and was not available earlier despite exercise of due diligence (which the Claimant emphatically denies), the pending separate application for production of documents can be pursued, heard and decided on its own merits by this Hon'ble Tribunal without in any manner holding up or delaying the hearing and disposal of the urgent Section 17 application. The Respondents cannot be permitted to use the present application as a device to bypass the regular process or to obtain a collateral advantage.

10. On the contrary, grave and irreparable prejudice, hardship and injury would be caused to the Claimant if the present application is allowed. The Claimant's application under Section 17 seeks urgent interim measures for the protection and preservation of his valuable rights, interests and properties pending final adjudication of the disputes. The interim relief is of a protective and preservative nature and any further delay in its hearing and disposal would not only defeat the very purpose and object of the application but would also render it infructuous, causing irreparable loss, damage and



prejudice to the Claimant which cannot be adequately compensated in monetary terms. The balance of convenience is overwhelmingly in favour of the Claimant and heavily against the grant of any leave that would inevitably result in further delay, additional rounds of pleadings, arguments and postponement of the decision on the interim measures.

11. It is also pertinent to point out that in paragraph 1 of the application under reply, there is an erroneous and factually incorrect reference to "Mr. Pascoal Trindade, the Claimant". This is directly contradictory to the cause title of the present proceedings wherein Vikram Shah is arrayed as the Claimant. Such careless, inaccurate and contradictory drafting further demonstrates the non-serious, casual and slipshod approach adopted by the Respondents in filing the present application and reinforces the conclusion that it has been preferred without proper application of mind and solely with the intention to delay proceedings.

12. For all the aforesaid reasons, the present application is liable to be dismissed with exemplary costs so as to deter the Respondents from adopting such dilatory, abusive and obstructionist tactics in future and to uphold the dignity and efficacy of the arbitral process.



**In view of the foregoing submissions, it is most respectfully  
prayed that this Hon'ble Tribunal may be pleased to:-**

(a) Dismiss the application dated 12.06.2026 filed by Respondent Nos. 1, 2 and 3 seeking leave to file additional reply, as being not maintainable in the eyes of law, highly belated, devoid of merit and/or filed with the clear intention to delay the hearing on the application under Section 17 of the Act and to further delay the arbitration proceedings;

(b) Direct that the Claimant's application under Section 17 of the Act for interim measures be heard and finally disposed of expeditiously on the basis of the pleadings, documents and material already on record, without granting any further adjournment or opportunity on the ground of the present application or any consequential pleadings;

(c) Award the costs of the present application to the Claimant, quantified at such sum as this Hon'ble Tribunal may deem fit and proper, or in the alternative, direct the Respondents to pay a sum of Rs. 50,000/- (Rupees Fifty Thousand only) or such other amount as may be deemed appropriate towards costs;



(d) Pass any other and further order or orders, direction or directions as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the present case.

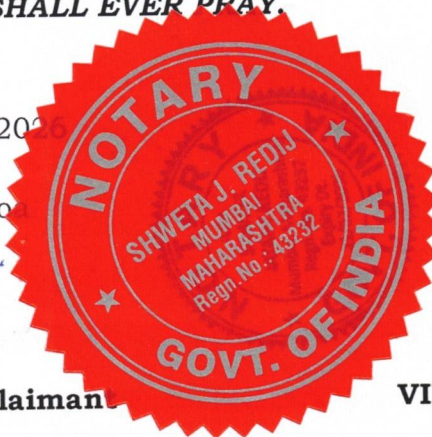
**AND FOR THIS ACT OF KINDNESS, THE CLAIMANT AS IN DUTY BOUND SHALL EVER PRAY.**

07 JUL 2026

Date: 7<sup>th</sup> July, 2026

Place: Panaji, Goa

  
Advocate for Claimant



  
Claimant

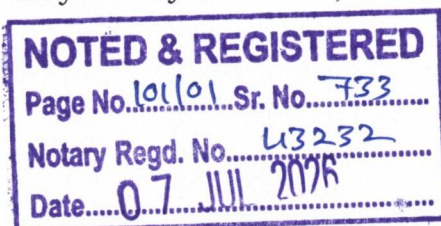
**VIKRAM SHAH**

**VERIFICATION**

I, Vikram, Shah Age About 76, Occ. Business, R/o:- 28 Capri 9 Manav Mandir Road, Mumbai 400006 do hereby state on solemn affirmation that whatever stated in the foregoing paragraphs No. 1 to 12 are the facts which are true and correct to my own knowledge and belief and I believe the same is to be true.

Solemnly Affirmed at Mumbai }

This 7<sup>th</sup> Day of July 2026 }



ID / Aadhar / PAN / DL : 7145 6382 9307

Seen Org. / POA / Board Resol.:.....

Before me

**BEFORE ME**



**SHWETA JAYANT REDIJ**  
Advocate & Notary, Govt. of India  
Flat No. 6, B Wing, Gemini Apartments,  
Baf Hira Nagar, Behind Racha Hotel,  
Near Malwani Fire Brigade, Malad (West), Mumbai - 95, Maharashtra  
Regn. No. 43232